

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4488

			Of the printed Bill
Page	<u>7-8</u>	Section	<u>2</u>
		Lines	<u>11-14</u>
			Of the Engrossed Bill

By deleting all content beginning with "If . . . (the insurance company) " and ending with "actual costs" and inserting in lieu thereof the following:

"1. If you and we fail to agree on the amount of loss, either party may make written demand for an appraisal;

2. Each party will select an appraiser and notify the other party of each appraiser's identity within twenty (20) days after the demand is received;

3. The appraisers will select a competent and impartial umpire;

4. If the appraisers are unable to agree upon an umpire within fifteen (15) days after receiving notice of the identity of the appraisers (item 2. above), you or we can ask a judge of a court of record in the county where your residence is located to select an umpire;

5. The appraisers shall then appraise the loss and submit to us written reports stating separately the loss to each item;

6. If the appraisers' reports are in agreement, we will pay the agreed upon amount;

7. If the appraisers cannot agree, they will submit reports to the umpire, and we will pay the amount agreed upon by any two; and

8. Each party will pay the appraiser it has chosen and will pay an equal share of the expenses for the umpire and all other expenses of the appraisal."

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Tammy Townley

Adopted: _____

Reading Clerk